

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
HAASHIM PIERSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
IVAN CRUZ, SHIELD NO. 25251, NYPD POLICE
OFFICER JUAN R MARTINEZ CABRERA, SHIELD
NO. 4289, and NYPD POLICE OFFICERS JOHN AND
JANE DOES NUMBERS ONE THROUGH TEN,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 19, 2023

Yours, etc.

Gabriella Orozco
Gabriella Orozco, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, 100 Church Street, New York, NY 10007

NYPD POLICE OFFICER IVAN CRUZ, SHIELD NO. 25251, 40th Precinct, 257 Alexander Avenue, Bronx, NY 10454

NYPD POLICE OFFICER JUAN R MARTINEZ CABRERA, SHIELD NO. 4289, 40th Precinct, 257 Alexander Avenue, Bronx, NY 10454

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
HAASHIM PIERSON,

Plaintiff,

INDEX NO.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NYPD POLICE OFFICER
IVAN CRUZ, SHIELD NO. 25251, NYPD POLICE
OFFICER JUAN R MARTINEZ CABRERA, SHIELD
NO. 4289, and NYPD POLICE OFFICERS JOHN AND
JANE DOES NUMBERS ONE THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff **HAASHIM PIERSON**, by his attorneys, Shulman-Hill, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On or about July 4, 2022, at approximately 09:00 p.m., while lawfully inside the vicinity of 328 Beekman Avenue, County of The Bronx, State of New York, plaintiff was subject to an unlawful arrest, detention, assault, battery and excessive use of force by defendant police officers. In doing so, defendant officers caused serious physical and emotional injuries to Plaintiff. Plaintiff was deprived of his constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, assaulted, battered, subjected to excessive force, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff HAASHIM PIERSON is a resident of the State of New York.

3. NYPD Police Officer Ivan Cruz, Shield No. 25251 was at all times relevant herein an Officer with the New York City Police Department.

4. NYPD Police Officer Ivan Cruz, Shield No. 25251 is being sued in his individual and official capacity.

5. At all times relevant herein, NYPD Police Officer Ivan Cruz, Shield No. 25251 was assigned to the 40th Precinct of the NYPD.

6. NYPD Police Officer Juan R Martinez Cabrera, Shield No. 4289 was at all times relevant herein an Officer with the New York City Police Department.

7. NYPD Police Officer Juan R Martinez Cabrera, Shield No. 4289 is being sued in his individual and official capacity.

8. At all times relevant herein, NYPD Police Officer Juan R Martinez Cabrera, Shield No. 4289 was assigned to the 40th Precinct of the NYPD.

9. NYPD Police Officers John and Jane Does Numbers One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. NYPD Police Officers John and Jane Does Numbers One Through Ten are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

14. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on February 7, 2023.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On or about July 4, 2022, at approximately 09:00 p.m., while lawfully inside the vicinity of 328 Beekman Avenue, County of The Bronx, State of New York, the Defendant police officers unlawfully arrested Plaintiff without legal justification.

19. At the above time, Plaintiff was lawfully present outside the above location, socializing and eating with family members when he noticed the defendant officers approaching him.

20. Defendant officers began aggressively throwing peoples' food on the ground yelling at people to get off of the block.

21. Plaintiff was standing with his aunt when defendant officers suddenly pushed his aunt. Plaintiff calmly asked the officers why they were being so aggressive and flipping the food on the ground.

22. Defendant officers Ivan Cruz, and Juan R Martinez Cabrera responded by grabbing and pushing the Plaintiff. Plaintiff then raised his hands over his head, not wanting a physical altercation.

23. Absent probable cause, Defendant officers Ivan Cruz, Juan R Martinez Cabrera with police officers John and Jane Does punched the Plaintiff on the left side of his face, and tackled to the ground, where he was repeatedly punched and kicked.

24. At one point, a Defendant officer hit Plaintiff in the head with an object, or a flashlight.

25. While Plaintiff was on the ground, the defendant officers placed his hands behind his back then placed metal handcuffs on Plaintiff's wrist.

26. Defendant officers had no lawful basis to detain Plaintiff, who had not broken any law.

27. At no point did the Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

28. Plaintiff did not resist arrest.

29. Nevertheless, Plaintiff was placed in an NYPD patrol vehicle and taken to the 40th Precinct against his will.

30. Upon his arrival to the 40th Precinct, Plaintiff was placed in a holding room where he was unlawfully searched, fingerprinted, and photographed.

31. While in a holding cell, Plaintiff told defendant officers that he was in pain and needed medical attention. Plaintiff was taken to Lincoln Hospital where he was treated for a head injury, received five (5) staples to the back of the head, dizziness, right knee pain, and lower back pain.

32. After several hours at the hospital, Plaintiff was then transferred back to the 40th Precinct where he was held for several more hours, then transported to Central Booking where he was brought before a judge.

33. While in custody, the defendant officers provided the Bronx County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

34. Specifically, the Defendant officers falsely stated to the Bronx County District Attorney's Office that Plaintiff was arrested for resisting arrest and obstructing government administration.

35. Plaintiff was held in unlawful custody, at the 40th Precinct and Central Booking, for approximately twenty four (24) hours.

36. The false charges against Plaintiff were dismissed and sealed in their entirety on October 7, 2022.

37. Plaintiff continues to suffer physical and emotional trauma and distress from the actions of defendant officers complained of above.

38. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.

39. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION**Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty**

40. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

41. The individually named defendant officers, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

42. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional, physical and psychological injuries.

SECOND CAUSE OF ACTION**False Imprisonment**

43. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

44. The acts and conduct of the defendants constitute false arrest and false imprisonment. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

45. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

46. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional, physical and psychological injuries.

THIRD CAUSE OF ACTION**Violation of Plaintiff's Fourth and Fourteenth Amendment Rights:
Excessive Force**

47. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

48. The use of excessive force by defendants by, amongst other things, seizing, tightly handcuffing him, and strip searching him constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to

the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

FOURTH CAUSE OF ACTION

Failure to Intervene

49. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

50. The defendants that did not physically touch Plaintiff, but were present when other officers knowingly violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

51. Defendants failed to intervene to prevent the unlawful conduct described herein.

52. As a result of the foregoing, Plaintiff suffered significant mental, physical and emotional injuries, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.

53. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

54. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional, physical and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights:

Denial of Right to Fair Trial/Due Process

55. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

56. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

57. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

58. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

59. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

60. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

SIXTH CAUSE OF ACTION

42 U.S.C. 1983 and State Law Malicious Prosecution

61. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

62. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

63. Defendants commenced and continued a criminal proceeding against Plaintiff.

64. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.

65. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

SEVENTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

66. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

67. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

68. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

69. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately twenty four (24) hours in total.

70. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

EIGHTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

71. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

72. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

73. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

74. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

75. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

76. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

NINTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

77. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

78. Defendant Officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

79. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

80. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

81. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

82. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately twenty four (24) hours in total.

83. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

TENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

84. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

85. Defendant Officers are “covered individuals,” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

86. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

87. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

88. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

89. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and

excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

90. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

91. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

ELEVENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

92. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

93. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of his person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

94. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

95. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

96. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

97. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 19, 2023

By: *Gabriella Orozco*
Gabriella Orozco, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, 100 Church Street, New York, NY 10007

NYPD POLICE OFFICER IVAN CRUZ, SHIELD NO. 25251, 40th Precinct, 257 Alexander Avenue, Bronx, NY 10454

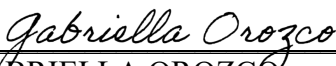
NYPD POLICE OFFICER JUAN R MARTINEZ CABRERA, SHIELD NO. 4289, 40th Precinct, 257 Alexander Avenue, Bronx, NY 10454

ATTORNEY'S VERIFICATION

GABRIELLA OROZCO, ESQ. an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
 April 19, 2023



GABRIELLA OROZCO